

PCL327514 Capital One, N.A., successor by merger to Discover Bank vs. Senior, Albert

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-09-01

Motion: Defendants' Counsel's Motion to be Relieved as Counsel

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Re: Capital One, N.A., successor by merger to Discover Bank vs. Senior, Albert

Case No.: PCL327514

Date: September 1, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Defendants' Counsel's Motion to be Relieved as Counsel

Tentative Ruling: To grant the motion; the order will be deemed effective upon the filing with the court of proof of personal service of the order as indicated herein.

Facts

On July 21, 2026, Defendant's Counsel Christina Toroyan filed a motion to be relieved as counsel as to Defendant Albert Senior. Defendant's Counsel filed the following with respect to withdrawing:

- (1) MC-051 - Notice of Motion and Motion to be Relieved as Counsel;
- (2) MC-052 – Declaration in Support of Attorney's Motion to Be Relieved as Counsel; and
- (3) MC-053 - Order Granting Attorney's Motion to Be Relieved as Counsel

Additionally, Defendant's Counsel has filed proof of service of these documents by mail and electronic service.

Authority and Analysis

Code of Civil Procedure section 284 provides that "[t]he attorney in an action or special proceeding may be changed at any time before or after judgment of final determination, as follows: 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; [or] 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other."

California Rule of Court 3.1362(a) requires that the "notice of motion and motion to be relieved as counsel under Code of Civil Procedure section 284(2) must be directed to the client and must be made on the Notice of Motion and Motion to Be Relieved as Counsel-Civil (form MC-051)."

As noted above, counsel has complied with California Rule of Court 3.1362(a) by submitting the notice and motion on MC-051 and by directing the notice and motion to all parties.

California Rule of Court 3.1362 (c) further mandates that: "The motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel--Civil (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1). Specifically, the declaration that Rule 3.1362(c) requires must state that the moving attorney attempted to secure a "Substitution of Attorney" from the client as required under Code of Civil Procedure section 284(1) and that the client refused to so stipulate.

Here, the declaration is properly made on form MC-052, as well as a supplemental declaration attached to the Notice, and uses general terms without compromising confidentiality and indicates that Counsel has attempted to obtain a substitution by stipulation, but that Defendant has refused.

Next, service under Rule 3.1362(d) requires personal service, electronic service, or mail and counsel's declaration must note the service made. Here, service was by mail and email on July 21, 2026. The declaration of counsel indicates that Defendant's address was requested to be confirmed via electronic communications.

Finally, Rule 3.1362(e) requires the proposed order be lodged with the Court on MC-053 with the moving papers, specifying all hearing dates scheduled, including date of trial. Defendant's Counsel has complied with this requirement.

Therefore, the Court grants Defendant's Counsel's Motion to Withdraw as to Defendant. If no one requests oral argument, the Court is prepared to sign the order entitled "Order Granting Attorney's Motion to be Relieved as Counsel - Civil" that the moving party lodged with the Court. This order will be deemed effective upon the filing with the court of a proof of personal service of the "Order Granting Attorney's Motion to be Relieved as Counsel – Civil" as to Defendant.

The Court further directs counsel to attach to the Order an additional notice of the date, time, and Department of this court for any future hearing dates for this case as calendared.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.